

United States v. Alvarez - Indictment

Indictment in United States v. Alvarez. Procedural posture: Defendant filed a timely criminal notice of appeal after a within-Guidelines sentence; the government invokes an appellate waiver while defendant challenges Guidelines calculation and allocution. Record material: The plea agreement contains a waiver of appeal except for claims above the advisory Guidelines range or based on ineffective assistance. Issue: Scope and validity of appellate waiver. Standard of review: de novo with plea-colloquy record review. Record excerpt: Plea agreement appeal waiver. The plea agreement waives appeal of any sentence within or below the advisory Guidelines range, except for limited reserved claims. Nature of suit: Criminal - Sentencing. Lower tribunal: U.S. District Court for the Eastern District of North Carolina.